

aspects, such as late filing and costs (for details, see CA/133/02). In 2007 they were revised again, to reflect the EPC 2000 (OJ 2007, 536); the provisions on written and oral proceedings were largely left unchanged, but renumbered.

Under Art. 23 RPBA 2020, which was left unchanged from the previous version, the RPBA are binding on the boards unless they lead to a situation which would be incompatible with the spirit and purpose of the EPC (on this, see T 2227/12).

In T 2154/15 the board stated that the RPBA constitute second-degree subsidiary law and thus could not remove powers attributed to the boards by an Article of the EPC.

More details on the RPBA 2020 can be found in particular in chapters V.A.8. "Remittal to the department of first instance", V.A.4. "New submissions on appeal – case law on RPBA 2020", and III.C. "Oral proceedings".

1.3. Suspensive effect of the appeal

1.3.1 Definition of the suspensive effect of the appeal

Under Art. 106(1), second sentence, EPC, an appeal has suspensive effect.

In G 2/19 (OJ 2020, A87) the Enlarged Board of Appeal observed that this provision has basic character. It is tailored to the standard case of an appeal filed by a party to the preceding proceedings who was adversely affected by a decision issued in them and who is seeking redress for a grievance which is appealable as such. There is, however, no legitimate interest in also lending suspensive effect to a means of redress which has no basis in the EPC and which is therefore clearly inadmissible, such as an appeal filed by a third party within the meaning of Art. 115 EPC to remove allegedly unclear claims (Art. 84 EPC). The Enlarged Board of Appeal held that it logically follows that the initiation of a means of redress which, owing to such circumstances, is clearly inadmissible can have no suspensive effect.

The Legal Board of Appeal defined this effect in J 28/94 (OJ 1995, 742), in which a third party claimed entitlement to the grant of the patent and requested suspension of the proceedings for grant under R. 13(1) EPC 1973 (R. 14 EPC). The board took the view that the appeal's suspensive effect meant the contested decision had no legal effect until the appeal was resolved. Otherwise the appeal would be nugatory. Thus, if a decision refusing to suspend the publication of the mention of grant of a patent were appealed, publication should be deferred until the appeal was decided. If (as here) this was not possible for technical reasons, the EPO should take all necessary steps to advise the public that the mention of grant was no longer valid (see also T 1/92, OJ 1993, 685).

According to J 28/03 (OJ 2005, 597), suspensive effect means that the consequences following from an appealed decision (here: grant of a patent on the parent application) do not immediately occur after the decision has been taken. Actions normally taking place after a decision are "frozen". Suspensive effect does not have the meaning of cancellation

of the appealed decision. Even after an appeal the decision as such remains and can only be set aside or confirmed by the board of appeal.

In J. 12/16 the examining division had had the mention of the grant of the patent published while the period for appealing against the Legal Division's rejection of a request for the application's transfer was still running. The board held that doing so could cause serious problems because publishing the mention of the grant triggered the start of the period for opposing the patent; that, in turn, could make the appeal redundant while the appeal proceedings were still pending, even though the appeal itself had suspensive effect. Since, as long as the appeal period had not expired, in theory the filing of an appeal, and so the suspensive effect under Art. 106(1) EPC, had to be expected at any moment (see also J. 28/94), publishing the mention of the grant should be avoided in such circumstances so as not to deprive the appeal of its suspensive effect in practice.

In T. 591/05, the suspensive effect of an appeal was said to be a direct consequence of, and was subordinate to the appeal itself and, consequently, no circumstance directly arising from the suspensive effect of the appeal could be invoked in support of the admissibility of the appeal itself.

J. 18/08 and T. 1674/12 likewise concerned the meaning of suspensive effect.

1.4. Devolutive effect of the appeal

When appeal proceedings start, responsibility for the case passes from the department of first instance to the boards of appeal (known as the devolutive effect; see T. 473/91, OJ 1993, 630; T. 830/03, T. 555/08).

According to T. 1382/08, the devolutive effect of an appeal before a board extends only to that part of the impugned decision which is indicated in the statement of grounds for appeal and actually challenged by the appeal. For the board, therefore, the extent to which the impugned decision is to be amended, as defined under R. 99(2) EPC, is simultaneously the limit of the devolutive effect. This in turn implies that the impugned decision's part not covered by the statement of grounds of appeal also cannot be part of the appeal proceedings and consequently becomes final on expiry of the time limit for appeal. This approach was also adopted by the same board in T. 448/09. Only those issues that were considered and decided upon in the decision can later be challenged in appeal proceedings (T. 2117/11). However, the board in T. 689/09 noted that, whilst it was aware of case law, according to which the distinction between different legal effects of a decision also fell under the "extent to which the impugned decision is to be amended" pursuant to R. 99(2) EPC, (T. 1382/08), this approach left the notion of the "subject of the appeal" even more diffuse and elusive. See also in this chapter V.A.3.2. "Subject-matter under examination".

On appeal, the department of first instance loses its competence for the further prosecution of the application for all contracting states – the appeal does not leave a part of the application pending in the first instance. Thus, deemed withdrawal of the application pursuant to Art. 110(3) EPC 1973 applied in the case of a failure to reply to a

communication pursuant to Art. 110(2) EPC 1973 in ex parte appeal proceedings, even where the decision under appeal did not refuse the application, but only a particular request. The board reasoned that even if the appealed decision concerned only the designation of a state and not the application as a whole, according to the principle of unity of the application and of the patent in the proceedings the suspensive effect of the appeal affected the application as a whole (J 29/94, OJ 1998, 147).

The devolutive effect of the appeal does not affect the competence of the department of first instance to decide on a request concerning the contents of the minutes of the oral proceedings held before it. What is devolved is the subject-matter decided by the appealed decision (T 1198/97).

1.5. Accelerated processing before the boards of appeal

New rules on accelerating appeal proceedings have been introduced in Art. 10(3) to (6) RPBA 2020. Paragraphs 3 to 6 replace the notice from the Vice-President Directorate-General 3 dated 17 March 2008 concerning accelerated processing before the boards of appeal (OJ 2008, 220).

The possibility of accelerating proceedings allows the boards to give an appeal priority over other pending appeals. Parties with a legitimate interest may ask the boards of appeal to deal with their appeals rapidly. Under Art. 10(3) RPBA 2020, the boards have discretion in deciding on a party's request for acceleration (for details on this, see Supplementary publication 2, OJ 2020).

The appellant (patentee) in T 734/12 requested acceleration of the appeal proceedings on the basis of three arguments: the possibility of remittal; the suggestion that the decision under appeal related to an important point of law the resolution of which might take additional time; and the commercial and medical importance of the patented and approved treatment. In the board's opinion these reasons did not in themselves justify acceleration. Whilst acceleration had been acknowledged as appropriate when infringement proceedings were threatened or pending, which was not the case here. However, it was clear there was a substantial measure of agreement between the parties and the public had an interest in the early resolution of disputes. The interests of the parties and of the public would therefore best be served by an expedited procedure.

In T 895/13 of 28 March 2014 the board confirmed that acceleration is always a matter for the exercise of the board's discretion. While trivial reasons would clearly not warrant acceleration, there was no fixed standard of proof. It was clear in the case at issue that the board could have accelerated the procedure ex officio under the notice of 17 March 2008 concerning accelerated processing before the boards of appeal (OJ 2008, 220), in view of the disadvantage which could ensue before the Belgian courts from the suspensive effect of the appeal in question. If the board could allow acceleration on that basis of its own motion, it could clearly do so on the request of a party. The board ordered the appeal proceedings to be accelerated. It added that its views related only to the particular facts of this case and the co-pending appeal in T 1125/13 of 28 March 2014

between the same parties and were not intended to set any precedent for application beyond those facts.

In T. 239/16 the board allowed acceleration. The board stated that according to the notice of 17 March 2008 concerning accelerated processing before the boards of appeal (OJ 2008, 220) trivial reasons would clearly not justify acceleration. It followed from the scenarios in the notice that the term "legitimate interest" was not to be construed as requiring compelling reasons. Rather, objective reasons had to be put forth that warranted giving the appeal priority. Of course, the reasons invoked must be weighed against any disadvantage which might possibly ensue from granting accelerated proceedings. In the case in hand, in support of their requests for accelerated processing, the appellants (opponents) argued that infringement proceedings had been brought against their affiliates in France. The board was satisfied that the appeal proceedings at issue had a bearing on the infringement proceedings in France even if the appellants were not party to the infringement proceedings in France. See also T. 1868/16 where the board allowed acceleration on the grounds that arbitration proceedings had been brought against an affiliate company in Portugal.

In T. 872/13 the board did not accede to the request for accelerated processing of the appeal because the reason provided by the appellant (opponent) that the patent was "causing uncertainty and hampering investment and development decisions by interested parties" was a general statement and not specifically related to a party to the proceedings.

In T. 1213/17 the proprietor requested that the case be remitted to the Opposition Division if the new objection was admitted into the proceedings. The board noted that the impugned decision dealt with all the grounds for opposition raised by the opponent. Moreover, national proceedings on issues of infringement and revocation were pending before the Stockholm District Court/Patent and Market Court in Sweden, on the basis of which the opponent requested accelerated processing before the board. The board decided not to remit the case.

See also chapter IV.C.7. "Acceleration of opposition proceedings in the case of pending infringement proceedings".

2. Filing and admissibility of the appeal

According to Art. 108 EPC a notice of appeal shall be filed, in accordance with the Implementing Regulations, at the EPO within two months of the date of notification of the decision. Notice of appeal shall not be deemed to have been filed until the fee for appeal has been paid. A statement setting out the grounds of appeal must be filed in accordance with the Implementing Regulations within four months of notification of the decision. R. 99 EPC sets out what the notice of appeal and the statement of grounds must contain.

The admissibility of an appeal can only be assessed as a whole (T. 382/96, T. 1763/06, T. 509/07, T. 23/10, T. 2001/14). There is no support in the EPC for a notion of 'partial admissibility' of an appeal (T. 774/97, T. 509/07).

See also chapter V.A.11.3. "Appeal deemed not to have been filed".

2.1. Transitional provisions for the EPC 2000

If notice of appeal was filed before the revised EPC entered into force, the appeal's admissibility must be assessed under the provisions of the EPC 1973, in line with the principle (*tempus regit actum*) that entitlement to perform a procedural act is governed by the law in force when the act took place (T 1366/04).

In J 10/07 (OJ 2008, 567) the board had to decide whether the EPC 1973 or the EPC 2000 applied. The decision whether an appeal is admissible according to the relevant provisions, geared to the fulfilment of the requirements for admissibility within a certain legally defined period, depends entirely on the substantive and legal position at the time of expiry of the time limits. Since the belated fulfilment of admissibility requirements after the expiry of the time limit cannot be taken into account in the examination of admissibility, so too a change in the legal position occurring after the expiry of the time limit for fulfilling the admissibility requirements can have no impact, either to the appellant's advantage or to his detriment, on the assessment of admissibility. In T 2052/08, the board, citing the finding in J 10/07 that R 103 EPC should not be applied to appeal cases concerning patent applications filed before the entry into force of the EPC 2000, found that, as J 10/07 concerned the reimbursement of the appeal fee in situations where a substantial procedural violation had occurred at first instance, its conclusions should not be taken as implying a statement on the applicability of R 103 EPC (see also T 49/11).

In T 616/08, the board found that, to the extent that it was relevant whether an aligned or the original version of a rule applied, there was a gap in the law which needed to be closed by case law as long as – like in the case of Art. 107, 109 und 111 EPC – the legislator was not active.

2.2. Appealable decisions

Under Art. 106(1), first sentence, EPC appeals lie from decisions of the Receiving Section, examining divisions, opposition divisions and the Legal Division. It is such decisions themselves rather than their grounds that are open to appeal (see T 611/90, OJ 1993, 50).

2.2.1 Departments

The boards can hear appeals only against the decisions taken by other EPO departments (J 12/85, OJ 1986, 155). There is thus no right of recourse to the boards of appeal in respect of extensions of patent applications and patents to the extension states. Instead, it is the respective national jurisdiction which is responsible (J 14/00, OJ 2002, 432; J 19/00, J 9/04, J 2/05, J 4/05, J 22/10 and J 9/11). The board in T 506/08 considered that it was not competent to hear a request for a (partial) refund of the international search fee where no search had been performed. See also T 2948/18.